MASTER SERVICES AGREEMENT

(Exclusive & Binding)

THIS MASTER SERVICES AGREEMENT (hereinafter referred to as the **"Agreement"**) is made and executed at **New Delhi, India** on this 31st day of January, 2026.

BY AND BETWEEN:

OMNIPOTENT ENTERPRISES LIMITED, a public limited company incorporated under the Companies Act, 2013, having its registered office at Connaught Place, New Delhi 110001 (hereinafter referred to as the **"Client"**, which expression shall include its successors, affiliates, subsidiaries, and assigns) of the **ONE PART**;

AND

SUBVIENT SERVICES PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, having its registered office at Okhla Phase III, New Delhi 110020 (hereinafter referred to as the **"Service Provider"**) of the **OTHER PART**.

1. SCOPE OF SERVICES AND EXCLUSIVITY

1.1 Unilateral Definition: The Service Provider shall perform any and all services requested by the Client ("Services"). The Client may unilaterally modify, expand, or alter the scope at any time via simple email instruction. The Service Provider shall be deemed to have accepted such changes immediately.

1.2 Exclusivity: During the Term of this Agreement, the Service Provider is strictly prohibited from providing services to any other entity, directly or indirectly, that operates in the Client's industry or related sectors.

2. PAYMENT AND INVOICING (PAY-WHEN-PAID)

2.1 Pay-When-Paid: Notwithstanding anything to the contrary, the Client's obligation to pay the Service Provider is strictly contingent upon the Client's receipt of payment from its own customers ("End Customers") for the relevant project. If the End Customer fails to pay the Client for any reason, the Client shall have no obligation to pay the Service Provider.

2.2 Payment Terms: Subject to Clause 2.1, payment shall be made within one hundred and eighty (180) days from the date of invoice acceptance.

2.3 Discretionary Clawback: The Client reserves the right to demand a refund of previously paid fees if, at any time (including after termination), the Client determines that the Services were unsatisfactory.

3. INTELLECTUAL PROPERTY (TOTAL ASSIGNMENT)

3.1 Assignment of All IP: The Service Provider hereby irrevocably assigns to the Client all right, title, and interest in: (a) the Deliverables; and (b) **all** of Service Provider's pre-existing intellectual property, tools, methodologies, and background IP used in or related to the Services.

3.2 Waiver: The Service Provider waives all moral rights and agrees that the Client shall be the sole and exclusive owner of all code, documentation, and inventions, including the Service Provider's core proprietary technology.

4. INDEMNIFICATION (ABSOLUTE)

4.1 Unlimited Indemnity: The Service Provider shall indemnify, defend, and hold harmless the Client against any and all claims, losses, penalties, and damages (including consequential damages) arising out of this Agreement, regardless of cause.

4.2 Client's Negligence: This indemnity obligation explicitly applies even if the claim arises solely or partially from the Client's own negligence, fraud, or willful misconduct.

5. LIABILITY

5.1 Service Provider's Liability: The liability of the Service Provider under this Agreement shall be **unlimited** and absolute.

5.2 Client's Zero Liability: Under no circumstances shall the Client be liable to the Service Provider for any damages whatsoever, including but not limited to direct, indirect, incidental, or unpaid fees. The Client's total aggregate liability under this Agreement is capped at INR 1 (Indian Rupee One).

6. TERM, TERMINATION, AND LOCK-IN

6.1 Client's Right: The Client may terminate this Agreement immediately at any time without cause and without penalty.

6.2 Provider Lock-in: The Service Provider may **not** terminate this Agreement for convenience. The Service Provider commits to a mandatory lock-in period of five (5) years. Early exit by the Service Provider shall attract a penalty equivalent to the total contract value.

7. NON-COMPETE AND NON-SOLICIT

7.1 Global Non-Compete: Upon termination, the Service Provider is prohibited from engaging in any business that competes with the Client, anywhere in the world, for a period of ten (10) years.

7.2 Poaching Penalty: If the Service Provider hires any former employee of the Client, the Service Provider shall pay liquidated damages equal to five (5) years of said employee's last drawn CTC.

8. DISPUTE RESOLUTION

8.1 Unilateral Arbitration: Any dispute shall be referred to a sole arbitrator appointed **exclusively** by the Managing Director of the Client. The seat of arbitration shall be the Client's conference room in New Delhi.

8.2 Costs: The Service Provider shall bear 100% of the arbitration costs, including the Client's legal fees, regardless of the outcome.

IN WITNESS WHEREOF, the Parties have executed this Agreement on the date first above written.

For OMNIPOTENT ENTERPRISES LTD.

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Name:
Title: Managing Director

For SUBVIENT SERVICES PVT. LTD.

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Name:
Title: Director